

Lalu Ram vs State & Ors on 30 March, 2017

Author: P.K. Lohra

Bench: P.K. Lohra

HIGH COURT OF JUDICATURE FOR RAJASTHAN AT
JODHPUR

S.B. Criminal Revision No. 881 / 2013

Lalu Ram s/o Shri Jairam, aged about 37 years, by caste Gadri,
resident of Sindesar Khurd, Tehsil Railmagra, District Rajsamand.

----Petitioner

Versus

1. State of Rajasthan
2. Smt. Sagar W/o Laluram, by caste Gadri, resident of Sindesar Khurd, at present Naya Dariba, Tehsil Railmagra, District Rajsamand.
3. Miss. Rani D/o Laluram, by caste Gadri, resident of Sindesar Khurd, at present Naya Dariba, Tehsil Railmagra, District Rajsamand.

(Respondent No.3 minor, through natural guardian mother
Smt. Sagar)

----Respondents

For Petitioner(s) : Mr. B.L. Choudhary

For Respondent(s) : Mr. L.R. Upadhyay, Public Prosecutor for the
State

Mr. A.K. Babel for respondent No.2 & 3.

HON'BLE MR. JUSTICE P.K. LOHRA

Order Reportable 30/03/2017 By the instant revision petition, under Section 397/401 Cr.P.C., petitioner has assailed impugned judgment and order dated 21st of September 2013, passed by Family Court, Rajsamand. By the impugned judgment and order, learned Family Court has allowed maintenance allowance to respondents No.2 & 3 under Section 125 Cr.P.C. and quantified amount of (2 of 12) [CRLR-881/2013] maintenance to the tune of Rs.5,000 per month, i.e. Rs.2,500 for each of the respondents. Prayer for grant of maintenance allowance is allowed by the learned Family Court from the date of application.

The facts, apposite for the purpose of this petition, are that respondents No.2 & 3 jointly filed a petition under Section 125 Cr.P.C. stating therein that marriage between petitioner and second respondent was solemnized as per Hindu rites and rituals about a decade back and out of their wedlock respondent No.3 born. The petition further unfurls that till birth of third respondent, matrimonial relations between the spouses remained streamlined but soon thereafter serious acrimony cropped up. The cause of acrimony is attributed by respondents to the petitioner with a specific allegation that he adopted a defiant posture and perpetuated cruelty vis-a-vis respondent

No.2 and further demanded dowry. Eventually, the cruel behaviour of the petitioner reached to its optimum level and he started beating second respondent, and this sort of situation forced her to leave matrimonial home with her minor daughter third respondent. Alleging monthly income of the petitioner to the tune of Rs.25,000, the respondents claimed monthly maintenance amounting to Rs.5,000, i.e., Rs.2,500 each. In reply to the application for maintenance, petitioner has seriously disputed the factum of marriage and pleaded that she is not legally wedded wife. In the return, petitioner has also disputed his income and submitted that he is hardly earning Rs.4,000 per month as an (3 of 12) [CRLR-881/2013] Artisan and therefore unable to afford the amount of maintenance claimed by the respondents. While refuting all the allegations of cruelty, petitioner has also submitted in the reply that he is prepared to keep second respondent with him.

To substantiate her claim for maintenance allowance, second respondent herself appeared in the witness box and also examined one more witness Hemraj. Besides that, two documents showing monthly income of the petitioner were also exhibited. In his defence, petitioner himself appeared in the witness box and examined two other witnesses. Upon conclusion of the trial, the learned Family Court heard final arguments and taking into account a very vital fact that both petitioner and second respondent lived together as spouses, recorded a definite finding that matrimonial relations between both of them subsisted. The learned Family Court has also recorded a definite finding that for summary proceedings under Section 125 Cr.P.C. strict proof of marriage akin to Section 494 IPC is not required and factum of marriage can be determined on the basis of evidence available on record. It is also observed by learned Family Court that living together for number of years may furnish a plausible ground for presuming factum of marriage. In this behalf, learned Family Court has also considered the candid admission of the petitioner that second respondent lived with him as wife and out of their relationship third respondent has born. With all these findings and taking into account the unrebutted evidence tendered by respondents about monthly income of the petitioner, the learned (4 of 12) [CRLR-881/2013] Family Court determined monthly maintenance allowance to respondents to the tune of Rs.5,000.

Learned counsel for the petitioner submits that there is serious dispute about factum of marriage in the instant case and therefore learned Family Court has committed a manifest error in awarding maintenance allowance to the respondents. Mr. Choudhary, learned counsel for the petitioner, would contend that Legislature in its wisdom has used the word "wife" and that presupposes legally wedded wife for which no proof as such is furnished by the second respondent, therefore, impugned judgment and order is per se vulnerable. Lastly, learned counsel has argued that legal position is still fluid as to how and in what manner the term "wife" has to be construed so as to give it broad and expansive interpretation or a narrow interpretation within the meaning of Section 125 Cr.P.C. Elaborating his submissions, learned counsel has argued that Supreme Court in *Chanmuniya Vs. Virendra Kumar Singh Kushwaha and Anr.* [(2011)1 SCC 141] has referred the matter to Larger Bench.

Per contra, learned counsel for the respondents has argued that the learned Family Court has rightly construed the term "wife" in the backdrop of facts and circumstances of the case so as to give it broad and expansive interpretation which warrants no interference in exercise of revisional jurisdiction. Learned counsel for the respondents would contend that mere reference to the Larger

Bench by Supreme Court cannot have any effect on the (5 of 12) [CRLR-881/2013] binding precedent of the Court. In support of his contention, learned counsel for the respondents has placed reliance on a decision of Supreme Court in National Insurance Company Ltd. Vs. Saju P. Paul and Anr. [(2013) 2 SCC 41]. On merits of the case, learned counsel for the respondents has relied on a decision of Supreme Court in Payla Mutyalamma @ Satyavathi Vs. Pyla Suri Demudu & Anr. [2012 (1) RLW 885 (SC)] and this Court in Kalu Lal Vs. State of Rajasthan & Anr. [2012 (2) RLW 1876 (Raj.).

I have heard learned counsel for the parties, perused the impugned judgment and order and thoroughly scanned the entire record of the case.

While it is true that Legislature in its wisdom has used the term "wife" under Section 125 Cr.P.C., who can claim maintenance if she is unable to maintain herself but then the term "wife" cannot be construed in narrow sense. Unlike strict proof about marriage under Section 494 IPC, status of a lady as a wife in summary proceeding under Section 125 Cr.P.C. can be determined on the basis of evidence brought on record by the parties. Indisputably, the petitioner and second respondent were living together for a considerable period and this fact is admitted by the petitioner. That apart, the petitioner also admitted that the third respondent has born out of this relationship. In addition to that, a candid admission of the petitioner that he is ready and willing to keep second respondent with him, is sufficient to establish that status (6 of 12) [CRLR-881/2013] of first respondent while living with the petitioner was akin to a wife. In this behalf, the learned Family Court has placed reliance on a decision of Supreme Court in case of Dwarika Prasad Satpathy Vs. Bidyut Praya Dixit and Another [(1999) 7 SCC 675]. In this judgment, Supreme Court has observed as follows:

"Learned counsel for the appellant at the time of hearing had not disputed the paternity of the child. Hence, the question is whether the marriage between the appellant and respondent no.1 was valid or invalid? In our view, validity of the marriage for the purpose of summary proceeding under Section 125 Cr.P.C. is to be determined on the basis of the evidence brought on record by the parties. The standard of proof of marriage in such proceeding is not as strict as is required in a trial of offence under section 494 of the I.P.C. If the claimant in proceedings under Section 125 of the Code succeeds in showing that she and the respondent have lived together as husband and wife, the Court can presume that they are legally wedded spouses, and in such a situation, the party who denies the marital status can rebut the presumption. Undisputedly, marriage procedure was followed in the temple, that too, in the presence of idol of Lord Jagannath, which is worshipped by both the parties. Appellant contended before the learned Magistrate that the said marriage was performed under duress and at the point of knife, he was required to exchange garlands. That contention is not proved by leading necessary evidence. Once it is admitted that the marriage procedure was followed then it is not necessary to further probe into whether the said procedure was complete as per the Hindu rites in the proceedings under Section 125 Cr.P.C.

xxx It is to be remembered that the order passed in an application under Section 125 Cr.P.C. does not finally determine the rights and obligations of the parties and the said section is enacted with a view to provide summary remedy for providing maintenance to a wife, children and parents. For the purpose of getting his rights determined, the appellant has also filed a Civil Suit, which is pending before the trial court. In such a situation, this Court in *S. Sethurathinam Pillai v. Barbara alias Dolly Sethurthinam*, {1971 (3) SCC 923} observed that maintenance under Section 488 Cr.P.C., 1898 (Similar to Section 125 Cr.P.C.) cannot be denied where there was some evidence on which conclusion (7 of 12) [CRLR-881/2013] for grant of maintenance could be reached. It was held that order passed under Section 488 is a summary order which does not finally determine the rights and obligations of the parties; the decision of the criminal court that there was a valid marriage between the parties will not operate as decisive in any civil proceeding between the parties.

After not disputing the paternity of the child and after accepting the fact that marriage ceremony was performed, though not legally perfect as contended, it would hardly lie in the mouth of the appellant to contend in proceeding under Section 125 Cr.P.C. that there was no valid marriage as essential rites were not performed at the time of said marriage. The provision under Section 125 is not to be utilized for defeating the rights conferred by the Legislature to the destitute women, children or parents who are victims of social environment. In *Ramesh Chander Kaushal v. Mrs. Veena Kaushal and others*, (AIR 1978 SC 1807) Krishna Iyer, J dealing with interpretation of Section 125 Cr.P.C. observed (at Para 9) thus:-

"9. This provision is a measure of social justice and specially enacted to protect women and children and falls within the constitutional sweep of Article 15 (3) reinforced by Article 39. We have no doubt that sections of statutes calling for construction by courts are not petrified print but vibrant words with social functions to fulfil. The brooding presence of the constitutional empathy for the weaker sections like women and children must inform interpretation if it has to have social relevance. So viewed, it is possible to be selective in picking out that interpretation out of two alternatives which advances the cause - the cause of the derelicts."

In *Pyla Mutyalamma @ Satyavathi* (supra), Supreme Court has considered requirement of status of marriage in a proceeding under Section 125 Cr.P.C. and concluded that Section proceeds on de facto marriage and not marriage de jure. The Court observed:

"It was still further laid down in the case of *Sethu Rathinam vs. Barbara* (1970) 1 SCWR 589 that if there was affirmative evidence on the aforesaid points, the Magistrate would not enter into complicated questions of law as to the validity of the marriage according to (8 of 12) [CRLR-881/2013] the sacrament element or personal law and the like, which are questions for determination by the civil court. If the evidence led in a proceeding under Section 125 Cr.P.C. raises a presumption that the applicant was the wife of the respondent, it would be sufficient for the Magistrate to

pass an order granting maintenance under the proceeding. But if the husband wishes to impeach the validity of the marriage, he will have to bring a declaratory suit in the civil court where the whole questions may be gone into wherein he can contend that the marriage was not a valid marriage or was a fraud or coercion practiced upon him. Fortifying this view, it was further laid down by the Supreme Court in the matter of Rajathi vs. C. Ganesan AIR 1999 SC 2374 also, that in a case under Section 125 Cr.P.C., the Magistrate has to take prima facie view of the matter and it is not necessary for the Magistrate to go into matrimonial disparity between the parties in detail in order to deny maintenance to the claimant wife. Section 125, Cr.P.C. proceeds on de facto marriage and not marriage de jure. Thus, validity of the marriage will not be a ground for refusal of maintenance if other requirements of Section 125 Cr.P.C. are fulfilled.

When the appellant's case is tested on the anvil of the aforesaid legal position, it is sufficiently clear that the appellant has succeeded in proving that she was the legally married wife of the respondent with three children out of which one had expired while the other two who are major and well-settled. It has further been proved that the respondent-husband started deserting the appellant-wife after almost 25 years of marriage and in order to avert the claim of maintenance, a story of previous marriage was set up for which he failed to furnish any proof much less clear proof. Thus, it was not open for the High Court under its revisional jurisdiction to set aside the finding of the trial court and absolve the respondent from paying the maintenance of Rs.500/- per month to the appellant-wife.

A learned Single Judge of this Court in Kalu Lal (supra), has also considered the effect of Nata wife and birth of child out of relationship for construing factum of marriage. The Court held:

"In his cross-examination, the petitioner has admitted the fact that he and Smt. Pattu had lived as husband and wife for many years. According to him, during the interim period, three children were born. Once this admission is made by the petitioner, he cannot be permitted to raise the issue whether the (9 of 12) [CRLR-881/2013] non-petitioner No. 2 was his legally wedded wife or not. Moreover, in catena of cases the Hon'ble Supreme Court has already opined that where a man and woman live as husband and wife, where they are perceived in the society as husband and wife, it is not for the Court to go into the legal issue whether they were lawfully married for the purpose of deciding an application under Section 125 Cr.P.C. Therefore, as the petitioner and Smt. Pattu have lived as husband and wife, according to his own admission, this issue cannot be raised at the appellate stage. Hence, the learned Judge was justified in concluding and in treating Smt. Pattu as the lawfully wedded wife of the petitioner.

A bare perusal of the impugned judgment clearly reveals that the learned Judge has noticed the fact that Smt. Pattu was being looked after by one of her sons.

Considering the fact that at the relevant time, the petitioner was earning an income of Rs. 27,225/- per month, the amount of maintenance of Rs. 3,000/- is certainly not unreasonable."

Supreme Court, in Chanmuniya (supra), referred following, amongst other, questions to the Larger Bench in respect of Section 125 Cr.P.C. in the light of consistent change in social attitudes and values which have been incorporated in the forward looking legislation, Protection of Women from Domestic Violence Act, 2005:

1. Whether the living together of a man and woman as husband and wife for a considerable period of time would raise the presumption of a valid marriage between them and whether such a presumption would entitle the woman to maintenance under Section 125 Cr.P.C?
2. Whether strict proof of marriage is essential for a claim of maintenance under Section 125 Cr.P.C. having regard to the provisions of Domestic Violence Act, 2005?
3. Whether a marriage performed according to customary rites and ceremonies, without strictly fulfilling the requisites of Section 7(1) of the Hindu Marriage Act, 1955, or any other personal law would (10 of 12) [CRLR-881/2013] entitle the woman to maintenance under Section 125 Cr.P.C.?

While it is true that aforementioned questions are referred to Larger Bench by the Supreme Court but the Court has also opined that construing the term "wife" broad and expansive interpretation should be given to those cases where man and woman had been living together as husband and wife for a reasonably long period of time and strict proof of marriage should not be pre-condition for maintenance under Section 125 of the Code. Referring to some earlier decisions of the Supreme Court and the report of Dr. Justice V.S. Malimath of 2003, following observations are made by the Court:

"In Captain Ramesh Chander Kaushal v. Veena Kaushal and Ors. [(1978) 4 SCC 70], this Court held that Section 125 is a reincarnation of Section 488 of the Cr.P.C. of 1898 except for the fact that parents have also been brought into the category of persons entitled for maintenance. It observed that this provision is a measure of social justice specially enacted to protect, and inhibit neglect of women, children, old and infirm and falls within the constitutional sweep of Article 15(3) reinforced by Article 39.

Speaking for the Bench Justice Krishna Iyer, J observed that: (Veena Kaushal case, SCC p.74, para 9) "We have no doubt that sections of statutes calling for construction by courts are not petrified print but vibrant words with social functions to fulfill. The brooding presence of the constitutional empathy for the weaker sections like women and children must inform interpretation if it is to have social relevance. So viewed, it is possible to be selective in picking out that interpretation out of two alternatives

which advance the cause of the derelicts." (Para 9 on pages 1809-10).

Again in *Vimala (K) v. Veeraswamy (K)* [(1991) 2 SCC 375], a three-Judge Bench of this Court held that Section 125 of the Code of 1973 is meant to (11 of 12) [CRLR-881/2013] achieve a social purpose and the object is to prevent vagrancy and destitution. Explaining the meaning of the word 'wife' the Court held:

"...The object is to prevent vagrancy and destitution. It provides a speedy remedy for the supply of food, clothing and shelter to the deserted wife. When an attempt is made by the husband to negative the claim of the neglected wife depicting her as a kept-mistress on the specious plea that he was already married, the court would insist on strict proof of the earlier marriage. The term 'wife' in Section 125 of the Code of Criminal Procedure, includes a woman who has been divorced by a husband or who has obtained a divorce from her husband and has not remarried. The woman not having the legal status of a wife is thus brought within the inclusive definition of the term 'wife' consistent with the objective... "

Thus, in those cases where a man, who lived with a woman for a long time and even though they may not have undergone legal necessities of a valid marriage, should be made liable to pay the woman maintenance if he deserts her. The man should not be allowed to benefit from the legal loopholes by enjoying the advantages of a de facto marriage without undertaking the duties and obligations. Any other interpretation would lead the woman to vagrancy and destitution, which the provision of maintenance in Section 125 is meant to prevent.

The Committee on Reforms of Criminal Justice System, headed by Dr. Justice V.S. Malimath, in its report of 2003 opined that evidence regarding a man and woman living together for a reasonably long period should be sufficient to draw the presumption that the marriage was performed according to the customary rites of the parties. Thus, it recommended that the word 'wife' in Section 125 Cr.P.C. should be amended to include a woman who was living with the man like his wife for a reasonably long period."

Therefore, in view of binding precedent, a broad and expansive interpretation is required to be given to the term "wife" as envisaged under Section 125 Cr.P.C. Mere pendency of reference before the Larger Bench cannot obliterate the law holding the field governing the subject on the strength of doctrine of stare decisis. In this regard, observations made by Apex Court in *Saju P. Paul* (12 of 12) [CRLR-881/2013] and *Anr. (supra)* are also significant, which are quoted as infra:

"The pendency of consideration of above questions by a larger Bench does not mean that the course that was followed in *Baljit Kaur* and *Challa Bharathmma* should not be followed, more so in a peculiar fact situation of this case."

In view of foregoing discussion, upon examining correctness, legality and propriety of the impugned order, I am convinced that no interference with the impugned judgment and order is warranted. The learned Family Court has examined the matter appropriately for awarding maintenance to the

respondents in the backdrop of facts and circumstances of the case.

Resultantly, the petition fails and same is hereby dismissed.

(P.K. LOHRA) J.

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